

Court No. - 39

Case :- WRIT - C No. - 2839 of 2025

Petitioner :- Dharmveer Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ashish Goyal

Counsel for Respondent :- Alok Mishra,C.S.C.

Hon'ble Siddhartha Varma,J.

Hon'ble Dr. Yogendra Kumar Srivastava,J.

1. Heard learned counsel for the petitioner, Shri Alok Mishra, learned counsel for the Electricity Department and learned Additional Chief Standing Counsel.

2. Instant writ petition under Article 226 of the Constitution of India has been preferred by the petitioner seeking following reliefs:-

"i. Issue a writ, order or direction in the nature of Mandamus directing the respondents authorities not to take any coercive action against the petitioner in pursuance of Recovery Citation Dated 12.12.2024, the same issued by Office of Tehsildar, Tehsil Sadabad, District Hathras.

ii. Issue a writ, order or direction in the nature of Mandamus directing the respondent authorities to correct and update the status of the Electricity Connection No. 012892 of the petitioner."

3. The contention of learned counsel for the petitioner is that the electricity connection which was taken by the petitioner in the year 2004 was permanently disconnected in the year 2010 and, thereafter, the petitioner had not deposited any amount with the Electricity Department.

4. Learned counsel for the Electricity Department Shri Alok Kumar Mishra submits that the receipt showing permanent

disconnection would have to be verified and thereafter only the correct bill can be issued.

5. Under such circumstances, we direct that the petitioner may approach the Electricity Department under Section 6.5 of the U.P. Electricity Supply Code, 2005 by means of an application and, thereafter, the Electricity Department shall look into the application of the petitioner and decide the same within a month.

6. However, it is provided that for a period of two months or till the application of the petitioner is decided, whichever is earlier, no recovery shall be done from the petitioner.

7. In view of above, writ petition is **disposed of**.

Order Date :- 4.2.2025

Karan

(Dr. Y.K. Srivastava, J.)

(Siddhartha Varma, J.)